

HEADNOTE

“The revocation under Art. 75(1) UPCA and R. 242.1 RoP of an order of the Court of First Instance granting a permanent injunction will, as a general rule, have retroactive effect. The revoked order must therefore be regarded as never having had any legal effect. It follows that the revocation of an order subject to a recurring penalty removes the legal basis for any subsequent decision ordering the payment of a penalty, even if that decision relates to alleged breaches of the order prior to the revocation.

It follows from R. 370.6 RoP that it is the interest of the party that initiated the action before the Court of First Instance that needs to be considered. The value of proceedings on appeal may differ from the value at first instance, but on appeal by the defendant it remains the interest of the claimant in having the decision upheld that determines the value of the proceedings pursuant to R. 370.6 RoP. It does not then shift to the interest of the defendant to have the decision set aside.

The amount of the penalties forfeited by the defendant cannot be taken to represent the claimant's interest in the enforcement proceedings, since the penalties forfeited are payable to the Court. It is rather the claimant's interest in proper fulfilment of the obligations that the penalties serve to incentivize that is relevant.

There is no legal basis for assessment of whether the defendant's behaviour unnecessarily contributed to the costs of enforcement proceedings based on a decision that must be regarded as never having had any legal effect. Where a defendant retroactively was not obliged to comply with any orders in the decision that has been revoked, it cannot be said that it was too late or incomplete with doing or providing something it was ordered to do therein.”

COURT
Court of Appeal Luxembourg

PROCEEDINGS
Appeal

PATENT
EP 3 511 174

Planographic printing plate original plate, method for manufacturing planographic printing plate, and planographic printing method

KEYWORDS

Consequences for penalty payments of rev...

unsuccessful party in enforcement proceed...

value of the proceedings

Article 75 Decision on appeal and referral back**SUMMARY**

The Court of Appeal Luxembourg decided an appeal concerning a permanent injunction. The patent at issue relates to a planographic printing plate. According to the headnotes of the decision, when a lower court's injunction order is revoked on appeal, it is treated as if it never existed, which means any penalty decisions based on that order also lose their legal foundation. The value of proceedings on appeal is determined by the original claimant's interest in upholding the first instance decision, rather than shifting to the defendant's interest in overturning it. Penalties that the defendant forfeits go to the Court rather than the claimant, so the relevant measure of the claimant's interest is whether the defendant properly fulfilled the underlying obligations that the penalties were meant to enforce. Since a revoked decision is legally deemed never to have had effect, a defendant cannot be found to have breached or improperly delayed compliance with orders that retroactively were never binding on it.